

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

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FRANK PIRONE

Date filed:

SUMMONS

Plaintiff(s),

Plaintiff designates KINGS
County as the place of trial.

-against-

THE CITY OF NEW YORK, P.O. JAMES TITOS
AND P.O. JAY RIVERA,

The basis of venue is the
location of the occurrence
pursuant to CPLR §504(3).

Defendant(s).

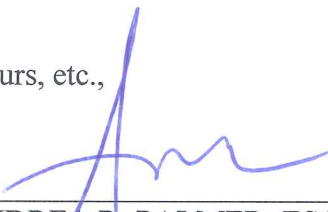
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The location of the
occurrence is intersection of
Forbell Street and Conduit
Boulevard, County of Kings,
City and State of New York

TO THE ABOVE NAMED DEFENDANT(s):

YOU ARE HEREBY SUMMONED to appear in this action by serving a notice of appearance on plaintiff's attorneys within 20 days after service of this summons, exclusive of the day of service, or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, Judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: Howard Beach, New York
 April 14, 2015

Yours, etc.,



ANDREA R. PALMER, ESQ.
SCOTT BARON & ASSOCIATES, P.C.
Attorney for Plaintiff(s)
FRANK PIRONE
159-45 Cross Bay Boulevard
Howard Beach, New York 11414
(718) 738-9800
File # 14-9619

DEFENDANT'S ADDRESS(ES):

THE CITY OF NEW YORK
100 Church Street, 5th Floor
New York, New York 10007

P.O. JAMES TITOS (SHIELD #3128)
NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10007

P.O. JAY RIVERA (SHIELD #3882)
NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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FRANK PIRONE

Plaintiff(s),

-against-

THE CITY OF NEW YORK, P.O. JAMES TITOS
AND P.O. JAY RIVERA,

Defendant(s).

**VERIFIED
COMPLAINT**

Index No.:

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Plaintiff, by his attorney, SCOTT BARON & ASSOCIATES, P.C., as and for a cause of action, complaining of the defendants herein, respectfully show(s) to this Court and alleges upon information and belief as follows:

1. That at all times hereinafter mentioned, the plaintiff FRANK PIRONE was and still is a resident of the County of Queens, City and State of New York.
2. That the cause of action alleged herein arose in the County of Kings, City and State of New York.
3. That this action falls within one or more of the exemptions found within CPLR §1602.
4. That on or about August 8, 2014 and at all times herein mentioned, the defendant THE CITY OF NEW YORK was and still is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
5. That prior hereto on October 24, 2014 and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment thereof was duly served on the plaintiff's behalf on the Comptroller of the City of New York and that thereafter

said Comptroller for the City of New York refused or neglected for more than thirty (30) days and up to the commencement of this action to make any adjustment or payment thereof, failed to demand a hearing pursuant to Section 50 (h) of the General Municipal Law, within the time prescribed, and that thereafter, and within the time provided by law, this action was commenced.

6. That on or about August 8, 2014 and at all times hereinafter mentioned, the defendant(s) THE CITY OF NEW YORK operated a department known as the NEW YORK CITY POLICE DEPARTMENT, (hereinafter referred to as the "NYPD").

7. That on or about August 8, 2014, defendant(s) THE CITY OF NEW YORK and NYPD, employed the officers, policemen, agents, servants and/or assistants, and others hereinafter mentioned in this complaint.

8. That on or about August 8, 2014, defendant, P.O. JAMES TITOS, was employed by defendant(s) THE CITY OF NEW YORK and NYPD at the 75th Precinct located at 1000 Sutter Avenue, Brooklyn, New York.

9. That on or about August 8, 2014, defendant, P.O. JAY RIVERA, was employed by defendant(s) THE CITY OF NEW YORK and NYPD at the 75th Precinct located at 1000 Sutter Avenue, Brooklyn, New York.

10. That on or about August 8, 2014, the plaintiff FRANK PIRONE was lawfully on public property/premises located at the intersection of Forbell Street and Conduit Boulevard, in County of Kings, City and State of New York.

11. That on or about August 8, 2014, the plaintiff FRANK PIRONE while lawfully at or near the aforementioned premises, was falsely arrested by defendant P.O. JAMES TITOS and P.O. JAY RIVERA.

12. That on or about August 8, 2014, the plaintiff FRANK PIRONE was illegally detained by defendant P.O. JAMES TITOS using excessive force.

13. That on or about August 8, 2014, the plaintiff FRANK PIRONE was illegally detained by defendant P.O. JAY RIVERA using excessive force.

14. That the aforementioned arrest of the plaintiff FRANK PIRONE was illegal and

without authority of law.

15. That the aforementioned arrest of the plaintiff FRANK PIRONE was without probable cause.

16. That on or about August 8, 2014, plaintiff was falsely arrested, falsely detained, falsely imprisoned, wrongfully taken into custody by excessive use of force, improperly and excessively searched by reason of the negligence of the defendant(s) THE CITY OF NEW YORK and NYPD, P.O. JAY RIVERA and P.O. JAMES TITOS and their agents servants and/or employees. That defendant(s) THE CITY OF NEW YORK and NYPD, P.O. JAY RIVERA and P.O. JAMES TITOS were careless, reckless, and negligent in that they, their employees, agents, servants and/or licensees failed to properly and adequately hire, screen, train, instruct, supervise, manage and control those persons in its employ; in failing to properly and adequately hire, screen, train, instruct, supervise, manage and control those persons in its employ as police officers, detectives, and supervisory officers with regard to the reasonable and prudent use of arrest procedures; in failing to properly and adequately hire, screen, train, instruct, supervise, manage and control those persons in its employ as police officers, detectives, and supervisory officers with regard to the reasonable performance of a criminal investigation; in negligently, recklessly, and carelessly allowing its employees, agents, servants and/or licensees to perform their duties with knowledge of their lack of fitness due to mental, emotional and psychological defects and past experiences prior to and during instances of wrongful, improper, and reckless instances of police misconduct; in failing to institute and promote a reasonable and adequate system to identify, discipline and remove from service, those officers, detectives and supervisory officers whose acts and conduct are wrongful, improper and reckless; in failing to properly hire, screen, train, instruct, and supervise its employees to approach, chase and attempt to apprehend persons suspected of engaging in criminal activity; in failing to properly and adequately hire, screen, train, instruct, supervise, manage and control those persons in its employ as police officers, detectives, and supervisory officers with regard to conducting criminal investigation; in compelling police officers, detectives, and supervisory officers to perform their duties for which they were not properly and

adequately trained; in failing to promulgate, propound, teach, instruct, advise and distribute proper and adequate safety rules, procedures, and guidelines with regard to the safe and proper exercise of the duties of its police officers, detectives and supervisory officers, including the apprehension of individuals, arrest procedures and/or performing criminal investigations; in failing to take reasonable measures to insure that police officers, detectives, and supervisory officers were fully and properly familiar with and abided by the rules, procedures, and guidelines ; in failing to sufficiently, properly and adequately train, teach, instruct and supervise its police officers, detectives and supervisory officers in the standards to be used for arrests and the performance of a criminal investigation; in being negligent, reckless and careless in the investigation of the occurrence; in being negligent, reckless and careless in the gathering and maintenance of pertinent facts and relevant information pertaining to the occurrence; defendants, their agents, servants, employees and/or licensees negligently, carelessly, and recklessly allowed plaintiff to be physically detained, falsely arrested, verbally abused, physically assaulted and deprived of his civil rights; defendants, their agents, servants, employees and/or licensees were negligent in the use of unbridled discretion in the false arrest, verbal abuse, physical assault, physical detention and deprivation of the civil rights of plaintiff; in negligently failing to guard against the false arrest, verbal abuse, physical detention and deprivation of the civil rights of members of the public, including plaintiff; in recklessly and negligently allowing the physical assault of the plaintiff; in arresting plaintiff without a warrant; in continuing to detain plaintiff after defendants learned of or should have learned of the unlawfulness, falsity and lack of probable cause for plaintiff's arrest and imprisonment; in allowing the life and safety of plaintiff to be unreasonably placed in jeopardy while falsely imprisoned; in failing to protect the life and safety of plaintiff while falsely imprisoned; in wrongfully, willfully and maliciously refusing to release plaintiff from his unlawful confinement with careless, reckless, wanton and malicious disregard of plaintiff's Constitutional rights; in willfully, wantonly, and maliciously falsely arresting, physically detaining, verbally and physically abusing and depriving the civil rights of plaintiff; the intentional use of unbridled discretion in the false arrest, verbal abuse, physical assault, physical detention and deprivation of the civil rights of plaintiff; in failing to

guard against the false arrest, verbal abuse, physical assault, physical detention and deprivation of the civil rights of members of the public, including plaintiff; in using excessive force; in exercising the use of police power and authority such that plaintiff was physically assaulted, abused and detained, falsely arrested, verbally abused and deprived of his civil rights; in failing to act with reasonable prudence in the use of police power and authority so as to avoid the improper arrest, assault, abuse and detention of innocent persons; in physically assaulting plaintiff; in knowingly arresting plaintiff without a warrant; in forcibly detaining, falsely arresting and depriving plaintiff of his freedoms and constitutional and civil rights while acting in the scope of their authority and within the scope and in the furtherance of their employment; in knowingly violating, consciously ignoring and failing to adhere to and properly follow guidelines and standards; in knowingly failing to exercise due care and proper professional judgment under the circumstances then and there prevailing at the time of the occurrence; in continuing to detain plaintiff after defendants learned of or should have learned of the unlawfulness, falsity and lack of probable cause for plaintiff's arrest and imprisonment; in allowing the life and safety of plaintiff to be unreasonably placed in jeopardy while falsely imprisoned; in failing to protect the life and safety of plaintiff while falsely imprisoned; in permitting the wrongful, willful, malicious and grossly negligent false arrest, verbal abuse and physical assault, physical detention and deprivation of the civil rights of the plaintiff without probable cause for the means of harassment of plaintiff; in deliberately, intentionally, maliciously, willfully harassing plaintiff; in deliberately, intentionally, maliciously, willfully and with gross negligence physically and forcibly detaining, verbally abusing, physically assaulting, falsely arresting and depriving plaintiff of his freedoms and constitutional and civil rights while acting in the scope of their authority and within the scope and in the furtherance of their employment; in intentionally failing to act with reasonable prudence to prevent the false arrest, physical assault, detention and deprivation of the civil rights of plaintiff; in intentionally violating and failing to adhere to and properly follow guidelines and standards used; in willfully, intentionally, and wantonly violating and failing to adhere to and properly follow good and accepted guidelines and standards of police work then and there prevailing at the time of the occurrence.

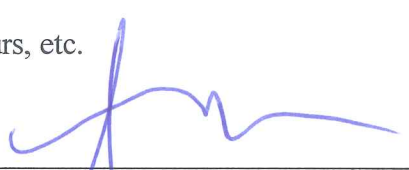
17. That the defendant(s) THE CITY OF NEW YORK and NYPD had actual and/or constructive notice of the aforesaid conditions.

18. That as a result of the excessive use of force, false arrest and illegal imprisonment which the plaintiff suffered, plaintiff was caused bodily harm; plaintiff's health was impaired; suffered great mental distress; plaintiff was caused direct, pain and suffering; plaintiff's reputation and character were injured; plaintiff's earning power has been permanently impaired. Plaintiff FRANK PIRONE damages exceed the amount that the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff FRANK P. PIRONE demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction, together with the interest, costs and disbursements of this action.

Dated: Howard Beach, New York
April 14, 2015

Yours, etc.



ANDREA R. PALMER, ESQ.
SCOTT BARON & ASSOCIATES, P.C.
Attorneys for Plaintiff(s)
FRANK PIRONE
159-45 Cross Bay Boulevard
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(718) 738-9800
Our File No.: 14-9619

INDIVIDUAL VERIFICATION

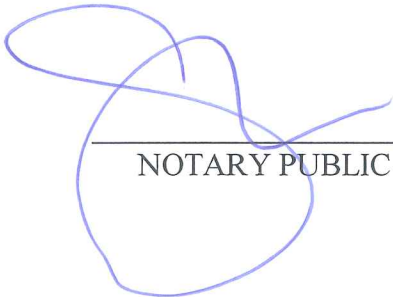
STATE OF NEW YORK)
) SS:
COUNTY OF QUEENS)

FRANK PIRONE being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing VERIFIED COMPLAINT and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.



FRANK PIRONE

Sworn to before me this
14 day of April, 2015



NOTARY PUBLIC

Sandy B. Cruz
Commissioner of Deeds
City of New York; No. 4-6750
Cert. Filed in New York County
Commission Expires Oct. 1, 20 15

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FRANK PIRONE

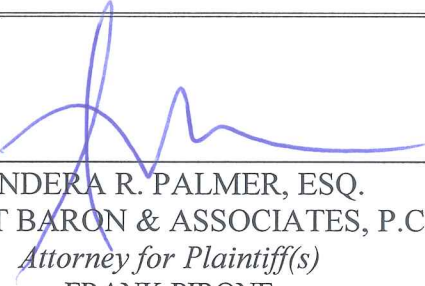
Plaintiff(s),

-against-

THE CITY OF NEW YORK, P.O. JAMES TITUS
AND P.O. JAY RIVERA,

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SUMMONS WITH VERIFIED COMPLAINT



ANDERA R. PALMER, ESQ.
SCOTT BARON & ASSOCIATES, P.C.
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